

Lettings Instruction Form



ELIZABETH WIGHTWICK
YOUR BESPOKE PROPERTY AGENT

Property details

Flat/House number/Name

Street name

Town/City

Postcode

Full name of owner (as at Land Registry)

Full name of additional owner (as at Land Registry)

If the Property is jointly owned, please state the names of all Owners. If the Property is corporately owned or owned by a trust, the full name of the company/trust, the company registration number and registered office address must appear on this form, which must be signed by an authorised signatory.

This instruction is for the (Please tick):

	Standard fee commission: See 3.1.1		Renewal fee commission: See 3.1.2
Lettings and Management Service	16% + VAT (19.2% incl VAT)	☐	16% + VAT (19.2% incl VAT)
Lettings Service only	10% + VAT (12% incl VAT)	☐	12% + VAT (19.2% incl VAT)
Short let service incl management	25% + VAT (30% incl VAT)	☐	25% + VAT (30% incl VAT)
Administration fee	£250 + VAT (£300 incl VAT)	☐	£250 + VAT (£300 incl VAT)
Reference fee per person	£50 incl VAT	☐	

RENEWAL FEE

A renewal fee is due for each and every renewal, extension or hold-over of the tenancy and any new agreement with the Tenant

EXAMPLE OF COMMISSION

On a 12 month managed long letting of £1,000 per month total commission fees of 16% would be £1,920 +VAT (£2,304 inc VAT).

OTHER CHARGES

Energy Performance Certificate fee (if Owner does not arrange one) - see 3.12.1	£99 +VAT (£118.80 inc VAT)
Inventory, check-in and -out fee (invoices provided)	Varies depending on the property
Abortive tenancy fee (aborted after agreements drawn up but before signing) – see 3.7	50% of full fee payable + expenses
Annual inspection fee (Management services only) – see condition 4.2	£100 + VAT (£120 inc VAT)
Overseas landlord fee if no HMRC approval to receive gross rent – see 3.17.3	£250 + VAT (£300 inc VAT)
Major works administration fee (if any works exceed £1,500) – see condition 6.6.2.7	10% of works invoice inc VAT
Professional cleaning (invoices provided) – see condition 3.8	Varies depending on the property
Exceptional or unusual duties as instructed by Owner/s – see condition 4.1	15% + VAT of the amount invoiced by the contractor or supplier overseen by the Agent
Legal proceedings – see condition 4.3	£350 + VAT (£420 inc VAT) per day or part day
Existing Tenant to purchase property – see Condition 9.15	1.25% of the agreed sale price



As members of the Property Ombudsman, we abide by the Property Ombudsman code of practice. Should you or your Tenant have a registered complaint, you also agree that we may disclose your details to the Property Ombudsman should they require them in their monitoring of our compliance with the Property Ombudsman Code of Practice. Registered in England and Wales. Registration no. 10660465.

All charges levied by us are subject to VAT at the prevailing rate. References in these terms are to any amount of VAT are at the current rate of 20%, should that change then you will become responsible to pay VAT at the changed rate.

Landlord details

Correspondence address (not the rented property address)

Flat/House number/Name	Street name
Town/City	Postcode
Email address(es)	Preferred contact number(s)

I/We confirm that we/I are UK Residents ☐

I/We confirm that we/I are non UK residents for tax purposes ☐

Non-UK resident landlords are required by HMRC to pay non-resident landlord tax. Letting agents have the legal obligation to collect and forward the non-resident landlord tax to HMRC unless a NRL1 approval letter was received directly by Elizabeth Wightwick Limited – Agent reference number 904/NA 06 0023. Tax is personal to each individual owner of the property. For more details on how to submit your NRL1, please visit <https://www.gov.uk/find-hmrc-contacts/non-uk-resident-landlords-enquiries>

Are you or any of your close family members or associates classified as a Politically Exposed Person (PEP) as defined by financial regulations? If yes, please provide details below: Yes ☐ No ☐

Bank details (To receive rent payments)

Name of Bank	Account number
Name of Account Holder(s)	Sort code



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Authorisation

Full details of commission and other fees are set out in conditions 3 and 4 and the Owner/s is/are advised to read these carefully before signing the acceptance below.

- ☐ I/We confirm that I/we are the sole/joint owners of the property
- ☐ I/we, the undersigned Owner(s) hereby appoint Elizabeth Wightwick Limited as Agent on my/our behalf on the attached terms and conditions.
- ☐ I/we have read the terms and conditions of this agreement in particular conditions 3, 4, 5.5, 7, 13.
- ☐ I understand that if I fail to sign this instruction form, but continue to instruct the agent, the agent will treat this as acceptance of this instruction form and the attached terms and conditions. I understand that I may have the right to cancel the Agreement within 14 days of signing as detailed in condition 13.

The agreement is only binding once it has been accepted by the signature of a duly authorised member of staff of Elizabeth Wightwick Limited or by the agent starting to provide these services.

Owner(s) name printed

For Elizabeth Wightwick - name printed

Signature(s)

Signature

Document check list

I confirm that I have provided the following supporting documents as proof;

- ☐ Copy of Land registry OR
Copy of most recent mortgage statement (dated no more than 3 months ago)
- ☐ Copy of most recent utility bill (dated no more than 3 months ago) OR
Mobile phone bill (dated no more than 3 months ago)
- ☐ Copy of passport AND
Copy of drivers licence

LETTINGS AND MANAGEMENT TERMS AND CONDITIONS

Whilst our aim is to provide care, skill and attention to letting and/or managing your property we recognise the need for our relationship with you as our client to be formally documented, to protect both you and us. So please take the time to read these terms and conditions – these are the terms on which we will act as agent for you. The following conditions (Conditions) together with the provisions set out in the Instruction Form shall constitute the agency agreement between us (referred to as Agent) and you (Agreement).

1. DEFINITIONS

Agent	Elizabeth Wightwick Limited, a company incorporated in England and Wales with company number 10669465
Owner	the Owner(s) of the property whose name appears on the Instruction Form.
Fees	the commission and other charges payable for the Agent's services under the Agreement as set out in conditions 3 and 4 of the Agreement.
Introduction	either: (i) the provision by the Agent to the Owner of the contact details of a prospective tenant whose details were not known by the Owner prior to the date of introduction; or (ii) the Agent arranging or assisting a prospective tenant to view the Property, whether or not the Owner had the contact details of the prospective tenant prior to the date the Agent acted to arrange or assist such a viewing. Introduce, Introduces and Introduced shall be interpreted accordingly.
Management	the business of the Agent in managing the Property.
Letting	the business of the Agent in letting the Property.
Property	the property details of which are set out in the instruction form.
Commencement	the start date of the Tenancy.
Term	the period starting on the date of signing of the Instruction Form and finishing when a Tenancy or Tenancies (including all renewal(s), extension(s) or hold-over(s) of the Tenancy or new agreement with the Tenant) arranged by the Agent from time to time cease unless this Agreement has in the meantime been ended as provided in these Conditions.
Tenant	means the tenant(s) procured by the Agent for the purposes of renting the Property.
Tenancy	means the period for which the Tenant is entitled to rent the Property (in accordance with a Tenancy Agreement) being an initial period of (one year).

2. APPOINTMENT

- 2.1 The Owner appoints the Agent to be his/their /its agent for the Letting of the Property and/ or for the Letting and Management of the Property as set out in the Instruction Form and the Agent accepts such appointment from the date the Agent signs the Instruction Form or commences supplying its services, whichever is the earlier.
- 2.2 The minimum period of appointment for our letting service is 4 weeks.
- 2.3 The minimum period of appointment to manage the Property is 6 months.
- 2.4 The Owner will be liable to pay the Fees as set out in condition 3 for the Lettings service if at any time a tenancy is entered into for letting the Property:
- 2.4.1 with a Tenant introduced to the Property by the Agent during the Term; or
- 2.4.2 with whom the Agent had negotiations about renting the Property during that period.

2.5 The Owner authorises the Agent to act for him/their/it in his/their/its name and on his/their/its behalf at the Owner's expense:

2.5.1 To perform any act and do anything referred to in condition 6 as is applicable or required in connection with the services requested.

2.5.2 If appointed to provide Management services, generally to do, execute and perform any other reasonable act or thing not specified in condition 6 in respect of the Management of the Property and which the Agent acting in good faith at its sole discretion believes necessary for the Management of the Property.

2.6 The Agent shall have no responsibility to any tenant, lessee or third party other than the Owner.

2.7 The Owner agrees to allow the Agent to erect a 'to let' board at the Property for the period of the Agreement.

3. FEES

The scale of Fees is set out on the Instruction Form.

3.1 Commission Fee

3.1.1 Initial Fee – in the event that the Agent Introduces a Tenant who enters into an agreement to rent the Property (Initial Agreement), a commission fee becomes payable to the Agent (Initial Fee). The Initial Fee is payable for any Tenant Introduced to the Property by the Agent, whether or not the Tenancy is finalised by the Agent, by another agent or otherwise. A commission fee is payable on or before the commencement date.

3.1.2 Renewal Commission Fee – The Agent will endeavour to contact both the Owner and Tenant before the end of the Initial Agreement to negotiate an extension of the Tenancy. **A renewal commission fee is payable upon any renewal(s), extension(s) or hold-over(s) of the Tenancy or new agreement with the Tenant (Renewal Fee). The Renewal Fee is payable whether or not the renewal, extension, hold-over or new agreement with the Tenant is negotiated by the Agent. The Renewal Fee is only payable where the original tenant introduced by Elizabeth Wightwick Limited remains in occupation. Where there is more than one tenant the Renewal Fee will be payable if any of them remain in occupation. The Renewal Fee will be charged in advance and will only apply for the first two years of renewals after the expiry of the initial period of the tenancy.**

3.1.3 The Agent will:

3.1.3.1 Deduct the Initial Fee from the first rental payment; and

3.1.3.2 Deduct each Renewal Fee from the first rental payment of any renewal, extension, hold-over or new agreement; provided that if the fee due exceeds the first rental payment of the applicable period, the balance will be deducted from subsequent payments due to the Owner, including without limitation, rental payments.

3.1.4 The Owner agrees that the Agent may deduct from any sums obtained or held on the Owner's behalf, including rental payments on the Property or any other property on which the Agent is instructed, any sums owing to the Agent.

3.1.5 If the Tenancy Agreement or a renewal is terminated prior to the end of its period, in accordance with any break clause contained in the Tenancy Agreement and the tenancy Agreement had more than one month left to run from the termination date, the Agent will refund the Fee paid in advance for the remaining period of the Tenancy after the date when it so ends. The Fee will be refunded within 14 days of the tenancy so ending.



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- 3.1.6 All agency charges and fees are subject to VAT at the prevailing rate: should that change then you will become responsible to pay VAT at the changed rate.
- 3.1.7 Without affecting our right to any Fees payable for the period prior to a sale of the Property and any payable under any separate Sale of Property Fee Agreement entered into by the Agent and the Owner, the Owner's obligation to pay commission fees terminates on completion of a sale of the Property.

3.2 Letting Service Fee

- 3.2.1 The Initial Fee is charged as a percentage of the total rental value of the agreed term as specified in the Tenancy Agreement at the rates set out on the Instruction Form, subject to clause 3.1.5.
- 3.2.2 Where a renewal is for an agreed term, the Renewal Fee is charged as a percentage of the total rental value of the agreed term at the rates set out on the Instruction Form, subject to clause 3.1.5.
- 3.2.3 Where the term of the renewal has not been agreed, the Renewal Fee is charged as a percentage of the total rental value as if the renewal was for the same term as the Initial Agreement at the rates set out on the instruction form, subject to condition 3.1.5

3.3 Letting & Management Service Fee

- 3.3.1 The Initial Fee is charged as a percentage of the total rental value of the agreed term as specified in the Tenancy Agreement at the rates set out on the Instruction Form, subject to condition 3.1.5
- 3.3.2 Where a renewal is for an agreed term, the Renewal Fee is charged as a percentage of the total rental value of the agreed term at the rates set out on the Instruction Form, subject to condition 3.1.5
- 3.3.3 Where the term of the renewal has not been agreed, the Renewal Fee is charged as a percentage of the total rental value as if the renewal was for the same term as the Initial Agreement at the rates set out on the instruction form, subject to condition 3.1.5
- 3.4 The Management Service portion of the Fee is taken monthly in advance.

3.5 Short Let Fee – This Fee will be payable in advance on or before the Tenancy starts for any Tenancy of 6 months or less and is charged as a percentage of the total rental value of the agreed period of that tenancy.

3.6 Administration Fee - This fee is payable by the Owner - £250+VAT for Initial Agreements (including the Agent's administration in respect of the reference check and deposit protection) and £250 + VAT for any renewal for both short lets and long lets.

3.7 Abortive Tenancy Fee - Once an offer has been accepted by both parties and the Tenancy Agreement is drawn up (whether in final draft or not) should the Owner inform the Agent that he/she/it does not wish to proceed, 50% of the Agent's full fee as set out in condition 3.2 is payable (Lettings Service only). This is in addition to any other fees due to the Agent, for example the Administration Fee.

3.8 Professional Cleaning - The charge for professional cleaning will vary depending on the type of property. The cost of professional cleaning at the start of the tenancy is borne by the Owner and the appropriate sum must be paid prior to the Owner signing the Tenancy Agreement to meet the Professional Cleaner's invoices. If the property is not to the appropriate standard as set by the Agent's tenancy cleaning

specification prior to move in, the Agent reserves the right to appoint a professional cleaner and to deduct costs incurred from rents or other income received on the Owner's behalf.

3.9 Inventory, Check-In and Check-Out - The charge for inventory, check-in and check-out will vary depending on the Property. The cost of preparation of the inventory is borne by the Owner and, where the Tenant has not employed his own representative, the cost of the check-in is borne by the Owner. The appropriate sum must be paid prior to the Owner signing the Tenancy Agreement to meet the inventory clerk's invoices. Otherwise, such sum will be deducted from rents or other income received on the Owner's behalf. The Agent will provide on request the Owner with an up to date price list of the inventory charges.

3.10 Subject to condition 7, the Agent does not accept liability for losses resulting from any errors or omissions within any inventory, check-in or check-out documents that are produced by a third party.

3.11 Statutory Compliance

3.11.1 Energy Performance Certificate - All buildings in the private rented sector require an Energy Performance Certificate (EPC). This certificate will normally remain valid for ten years. Landlords are required by law to obtain and make available, free of charge, an EPC to prospective tenants at the earliest opportunity and must provide the person who takes up the Tenancy with a copy. If the Owner fails to provide an EPC, the Agent will organise an EPC from an approved supplier of its choice at the rate of £99 + VAT and will deduct the cost from rents or other income received on the Owner's behalf.

3.11.2 Gas Safety Regulations - It is the Owner's responsibility under the Gas Safety (Installation & Use) Regulations 1998 to ensure that all gas appliances and the fixed installations are maintained in good order and checked for safety at least every 12 months by a Gas Safe registered engineer. A valid certificate will be required before the tenancy starts.

3.11.3 Electrical Equipment Safety - If a landlord provides any electrical appliances as part of a tenancy, the Electrical Equipment (Safety) Regulations 1994 require him or her to ensure that the appliances are safe when first supplied. Although there is no specific requirement for portable appliance testing to be carried out in rented accommodation, the landlord is required to take reasonable steps to ensure that appliances such as electric kettles, fridges and washing machines provided as part of the tenancy agreement are safe. It is the Owner's responsibility to ensure that the electrical installation and all electrical appliances within the Property are maintained in good order and regularly checked for safety by an appropriate registered engineer.

3.11.4 Electrical Installation Condition Report (EICR) - It is the Owner's responsibility under the Electrical Safety Standards in the Private Rented Sector (England) Regulations 2020 to ensure that the electrical installation within the property is in good order and checked by an experienced qualified electrician or an approved contractor. A valid EICR report will be required before the tenancy starts.

3.11.5 Failure to provide safety certificates - The Owner shall provide the Agent with valid certificates in respect of the Regulations referred to in conditions 3.11.2 and 3.11.3 and 3.11.4 prior to the commencement of the Tenancy or, if the Tenant remains in occupation beyond the expiry of the original certificate, 14 days before the expiry of the original certificate. If the Owner

fails to provide any such certificate when due, the Agent reserves the right, but shall be under no obligation to, appoint an appropriate registered engineer to make the necessary checks and carry out any remedial works necessary and will deduct the cost incurred from rents or other income received on behalf of the Owner.

- 3.11.6 Smoke and Carbon Monoxide Alarms – Regulations require private rented sector landlords to have:
- at least one smoke alarm installed on every storey of their rental property which is used as living accommodation; and
 - a carbon monoxide alarm in any room used as living accommodation where solid fuel is used. The Owner must make sure the alarms are in working order at the start of each new tenancy and that all checks are documented.
- 3.11.7 Furniture and Furnishings Fire Safety - The Furniture and Furnishings (Fire Safety) Regulations 1988 (as amended in 1989, 1993 and 2010) set levels of fire resistance for domestic upholstered furniture, furnishings and other products containing upholstery. The Owner warrants that all furniture and furnishings in the Property or to be included in a Property to which the Agreement relates complies in all respects with these Regulations and that any such provided by the Owner after the date of this Agreement shall so comply, for the duration of the Tenancy and any renewal(s), extension(s) or hold-over(s) of the Tenancy or new agreement with the Tenant.
- 3.11.8 Health and Safety – Legionnaire’s disease – The Owner is legally responsible for carrying out a risk assessment for Legionnaire’s disease before letting the Property and for maintaining control measures to minimise the risk of the disease in the water system while the Property is let.
- 3.11.9 Disability Discrimination - Under the Equality Act, landlords have specific duties and it is your responsibility to comply with your obligations under the legislation. Further information can be found at equalityhumanrights.com.
- 3.11.10 Other legislation - The Owners shall obtain, maintain and comply with all necessary licences and consents and comply with all relevant legislation in relation to the Property and their use, the Owner entering into the Tenancy, the Tenant and the Tenancy.

3.12 Deposits

- 3.12.1 Under the Housing Act 2004, if the Owner takes a deposit from the Tenant under an Agreement, the Owner has an obligation to protect that deposit with a government-authorised tenancy deposit protection scheme within 30 days of receiving it.
- 3.12.2 The Agent is a member of a Tenancy Deposit Scheme, which is administered by mydeposits. Full details of the scheme are at www.mydeposits.co.uk.
- 3.12.3 The Agent will obtain and hold as stakeholder throughout the Tenancy a deposit from the Tenant against unpaid rent or bills, dilapidations and any other costs or losses incurred as a result of any breach of the terms of the Tenancy Agreement by the Tenant.
- 3.12.4 For all Assured Shorthold Tenancies, the Agent will hold the deposit in accordance with the Housing Act 2004 under the terms of the Tenancy Deposit Scheme. Undisputed deposits must be returned to the Tenant within 10 days of termination of the Tenancy.
- 3.12.5 Subject to condition 7, the Agent accepts no liability for the failure to register a deposit where it is held by the Owner or an alternative appointed agent and the Owner shall fully reimburse the Agent any cost, expense or liability incurred by

the Agent arising from any claim by the Tenant as a result of the Owner or an alternative appointed agent holding the deposit. The Owner shall provide proof of membership of an authorised scheme.

- 3.12.6 Landlords who are resident outside the UK are not entitled to hold the deposit for the duration of the Tenancy.

3.13 References/Credit Checks The Owner is responsible for checking the authenticity and accuracy of references. By signing the Tenancy Agreement or otherwise instructing the Agent to proceed with a letting, the Owner, or the Owner’s authorised representative, is deemed to have accepted such references/checks, or to have waived the requirement for the Agent to obtain these. The Agent does not accept responsibility for the content of or the accuracy of the content of any references.

- 3.14 Right to rent** – the Owner is legally responsible for ensuring that all adult occupiers of the Property have valid right to remain in the UK, and thus the right to rent a property in England. The Owner must satisfy him/herself/ itself of all occupants’ right to rent i) before the Commencement Date of the Tenancy, ii) upon any renewal, extension or hold-over of the Tenancy or new agreement with the Tenant and iii) before expiry of the occupants’ right to remain in the UK. If the Agent obtains identity documents for the Owner for this purpose, it shall not constitute acceptance by the Agent of responsibility for the matters falling to the Owner under the right to rent legislation.
- 3.15 If follow-up checks indicate that the person no longer has the right to rent, the Owner should make a report to the Home Office as soon as reasonably practicable. Owners need to keep records of the checks they have undertaken for those people who will occupy their accommodation.

3.16 Landlords resident outside UK

- 3.16.1 Income from all residential lettings in the UK is subject to UK Income Tax or Corporation Tax. If the Owner is a non-resident landlord, the Owner may apply to the HMRC for approval to receive rents without tax being deducted. If granted, the Owner will receive the rent gross and be responsible for accounting him/herself to HMRC each tax year directly. When applying to HMRC for approval, please use our agency’s reference number: **904/NA 06 0023**
- 3.16.2 The Agent is required to deduct basic rate tax and account to HMRC for all overseas landlords who have not provided a valid and current written evidence of approval. Any interest earned on tax retentions will be retained by the Agent to defray bank charges and audit costs.
- 3.16.3 If the Owner is an overseas landlord and does not have approval from HMRC, the Owner may need to apply to HMRC for a refund of excess tax once his/her accounts are up to date. In such instances, the Agent is required to complete and return to submit to the Owner and HMRC. For the additional work involved where the Owner does not obtain HMRC approval to receive rent gross, the Agent will make an administration charge of £250 plus VAT per three month period.
- 3.16.4 If the Owner becomes an “overseas Landlord” and is no longer resident for tax purposes in the United Kingdom, the Owner must notify the Agent in writing immediately. If the Owner fails to do so and the Agent is levied with any penalty or interest charge by HMRC as a result, then the Owner must pay the whole of that penalty and interest and any costs to the Agent upon being required to do so.

4. ADDITIONAL CHARGES

- 4.1 In the event the Agent undertakes any exceptional or unusual duties as instructed by the Owner a further charge or charges will be made as may be fair and reasonable in the circumstance. A typical charge would be 15% + VAT of the amount invoiced by the contractor or supplier overseen by the Agent but this may increase depending on the duties. The Agent will notify the Owner of these prior to carrying out such duties, except in the case of emergency under condition 6.6.2.6.
- 4.2 When managing the Property the Agent will undertake annual inspections of the Property. The Owner shall be charged a fee of £100 + VAT per visit for any additional visits or inspections requested. The Owner acknowledges and agrees that such inspections will be superficial only and will not be a detailed inspection of the condition of the Property or a structural survey or inventory check.

4.3 Legal Proceedings

- 4.3.1 The Agent is not responsible for any legal steps for the recovery of rent and/ or repossession of the Property. Any appearances before any Court or Tribunal will be by special arrangement and the fee for any such attendance will be charged at £350.00 + VAT per day, or part thereof.
- 4.3.2 The Agent will not accept service of legal proceedings on the Owner's behalf.
- 4.3.3 In the event that a sitting tenant, that was introduced to the owner by Elizabeth Wightwick Limited, purchases the property, then the owner will be charged a sales fee of 1.25% + VAT on Completion of the Sale.

5. OWNER'S OBLIGATIONS

The Owner agrees with the Agent:

- 5.1 Ratification** To ratify all acts deeds and things done by the Agent in connection with the Management and/or Letting of the Property.
- 5.2 Reimbursement of Expenses** To reimburse the Agent all expenses properly incurred in the Management and/or Letting of the Property.
- 5.3 Insurance** To insure and keep insured for its full replacement value the Property and all the contents of the Owner (if any) remaining in the Property and to comply with all the provisions in the relevant insurance policy or policies. The Owner should note that renting out the Property will be likely to affect the insurance and may wish to consider specific landlord's insurance.
- 5.4 Payment** To pay or accept deduction of the Fees when they fall due and to make all other payments due to the Agent promptly and any VAT chargeable in addition.
- 5.5 Reimburse the Agent** To reimburse the Agent for any and all loss, damage or liability whether criminal or civil suffered, and legal fees and costs incurred by the Agent in the course of conducting the Management and/or Letting of the Property, under and in accordance with the Agreement, and for any claims, demands, liabilities, costs, expenses or prosecutions incurred by the Agent due to the failure of the Owner to comply with his/her/its obligations under the Agreement or under any applicable legislation or arising from or in connection with a breach of any warranty given by the Owner under the Agreement.

5.6 Warranty

- 5.6.1 The Owner warrants to the Agent that he/she/ it is the Owner of the Property and that he/she/it has full power and

entitlement to enter into the Agreement and that he/she/it has obtained all necessary consents including where appropriate, the consent of any mortgagee, superior landlord and insurer prior to entering into the Agreement and, where applicable, to supply a copy of any superior lease. The Owner is advised that any conditions of any mortgagee, superior landlord and insurer cannot be imposed on the Tenant after the Tenancy has started.

- 5.6.2 If the mortgagee or superior landlord wishes to impose any conditions on the Tenancy, the Owner warrants that he/she/it will provide the Agent with them prior to the commencement of the Tenancy for inclusion within the Tenancy Agreement.
- 5.6.3 Where the Owner is a joint Owner, he/she/it warrants and represents that all the owners are named in the Tenancy Agreement and that he/she/it is authorised to give instructions on their behalf.
- 5.6.4 The Owner warrants that all the information provided to the Agent is correct to the best of his/her knowledge and belief.
- 5.7 Licences - The Owner should be aware that each local authority operates its own licensing system and some may require the Owner to hold a residential property rental licence before the Property can be let. If the Owner is required to hold a licence and does not hold one the penalties can be significant. The Owner shall be responsible before the tenancy starts for checking directly with the applicable local authority to ascertain whether licensing will apply, exactly what is required and if there are any specific restrictions, such as a limit on the number of people permitted to occupy the Property.

6. AGENT'S SERVICES AND OBLIGATIONS

- 6.1 Letting Services (including complementary Rent Collection)
The Agent will in the normal course of its duties:
- 6.1.1 Initially inspect the Property for the purpose of condition 6.1.2;
- 6.1.2 Advise the Owner on current rents, appropriate furnishings, and related matters;
- 6.1.3 Advertise the Property using the Agent's established marketing methods;
- 6.1.4 Arrange and supervise appointments for prospective tenants to view the Property;
- 6.1.5 Introduce prospective tenants to the Property;
- 6.1.6 Inform the Owner of any offers received from prospective tenants and negotiate terms between the Owner and prospective tenants;
- 6.1.7 Unless not required by the Landlord take up and procure references from any prospective tenant;
- 6.1.8 Draw up and arrange for execution of a Tenancy Agreement;
- 6.1.9 Collect and receive and give receipts for rent and other payments at any time due to the Owner from any Tenant or any other authorised person in respect of the Property and to bank the same in a designated client account and to make just and reasonable deductions in respect of rates charges, repairs and other outgoings as are discharged by the Agent in accordance with these Conditions;
- 6.1.10 Remit rent in accordance with condition 6.5.1.4 of these Conditions.
- 6.2 The Owner acknowledges that Tenants will be unable to commence occupation of the Property under the Tenancy until the first rental instalment and the deposit have been received, in cleared funds, in the Agent's client account.
- 6.3 By appointing the Agent, the Owner authorises the Agent to sign any of the necessary documentation on his/her/its behalf, including without limitation in circumstances where the Owner

has confirmed verbally the instruction to proceed with a letting and, for example, the Agent cannot obtain the Owner's written confirmation or needs to proceed quickly.

- 6.4 The Agent will not arrange for repairs or maintenance if the Agent is not instructed to provide its Management & Lettings Service. The Owner should refer to the Tenancy Agreement for further details in case of dispute.

6.5 Managing Services

- 6.5.1 The Lettings & Management Service includes all the provisions and terms of the Lettings Service in addition to the terms of this condition
- 6.5. The Agent will in the normal course of its duties:
- 6.5.1.1 Manage the Property on behalf of the Owner;
- 6.5.1.2 Maintain and keep the Property in good repair in accordance with condition 6.6.2 provided that the Agent shall not be liable to repair any defects of which the Agent did not know, whether such defect is apparent or not;
- 6.5.1.3 Collect and receive and give receipts for rent and other payments at any time due to the Owner from any Tenant or any other authorised person in respect of the Property and to bank the same and to make just and reasonable deductions in respect of rates charges, repairs and other outgoings as are discharged by the Agent in accordance with condition 6.5.1.8;
- 6.5.1.4 Provide statements to the Owner of all rents and other sums collected since the Commencement Date or since the date of the last payment less expenses and pay all sums due to the Owner as soon as is reasonably practicable after collection of the rent in accordance with condition 6.5.1.3.
- 6.5.1.5 Subject to condition 7, endeavour to remit the payment to the Owner without delay however the Agent accepts no liability for any loss which may arise as a result of delayed submission. The Agent will use the BACS system if the Owner provides the Agent with his/her/its bank details. Where the Agent is required to make payment by alternative methods (e.g. CHAPS or cheque), the Agent will charge the Owner any costs which the Agent incurs in doing so. The Agent reserves the right to retain the final month's rent payable under a Tenancy until it is satisfied that there are no other expenses payable by the Owner;
- 6.5.1.6 In the event of the Owner taking legal action under condition 4.3.1 and subject to condition 4.3.1, the Agent shall supply all reasonable assistance to the Owner and/or his solicitor in relation to such legal action. Where the Owner is insured under a rental indemnity the Agent will advise the insurers as appropriate and shall supply all reasonable assistance to the solicitor instructed by the insurers;
- 6.5.1.7 Negotiate rent reviews, lease renewals and the Letting of the Property at the best rent which the Agent at its sole discretion considers to be available;
- 6.5.1.8 Subject to the Agent receiving the express authority of the Owner and where the Agent holds sufficient funds, pay all rates, charges, expenses and other outgoings payable by the Owner in respect of the Property and make any payment necessary in the Management of the Property out of the rental income, provided that the Agent shall be under no obligation to query demands and accounts for such outgoings.

6.6.2 Repairs and Maintenance

- 6.6.2.1 Subject to condition 7, the Agent will attend to day-to-day minor repairs and maintenance of the Property and its contents, provided that the Agent shall not be liable to repair any defects of which the Agent did not know, whether such

defect is apparent or not and the Agent is unable to overdraw against the Owner's account.

- 6.6.2.2 In the event that the Agent does not receive contrary instructions from the Owner in writing within 3 days, the Agent will proceed with the Owner's full authority to act as the Agent deems appropriate having regard to the Agent's contractual and statutory obligations.
- 6.6.2.3 Subject to condition 7, if the Agent manages property but does not hold sufficient funds to arrange for maintenance the Agent is not liable for the maintenance and any loss or damage suffered.
- 6.6.2.4 The Agent will contact the Owner for permission to proceed if the costs of the work exceed £250 (or other amount to be agreed in writing).
- 6.6.2.5 If requested, the Agent will obtain estimates for consideration by the Owner for repairs or maintenance likely to cost over £500 and submit them for approval prior to the commencement of the work.
- 6.6.2.6 However, in the event of an emergency, being an unforeseen event that if not dealt with quickly would (in the Agent's reasonable opinion) render the Property unsafe or insecure, or damage or cause further damage to the Property or cause personal risks to any person, the Agent reserves the right to instruct, without consulting the Owner, works to be undertaken in order to minimise any possible delay or damage to the Property.
- 6.6.2.7 If the cost of any work needed to the Property exceeds £1,500 and the Owner wishes the Agent to manage the project, a project management charge of 10% (plus VAT) of the invoice will be made, unless otherwise agreed.
- 6.6.2.8 The Agent will notify the Owner when it believes that damage to the Property has resulted from an insured risk, and will provide the Owner with the information that is needed in order to make a claim. The Agent will also obtain estimates for repairing the damage which can be supplied to the insurer, and arrange for the repairs to be carried out upon the Owner's instruction.

6.7. Payment of outgoings

- 6.7.1 A minimum working fund of £250 (or other amount to be agreed in writing) is required at the Commencement Date and during the Term of the management, to enable the Agent to meet any expenditure on the Owner's behalf.
- 6.7.2 The Agent cannot undertake to meet any outgoings beyond the funds it holds. If the Agent does not hold funds to settle an invoice, it may and is authorised to provide the Owner's contact details to the supplier so that they can apply to the Owner for payment.

6.8 Transfer of Utilities

- 6.8.1 Where provided with the necessary information, such as names of suppliers and utility account numbers, the Agent will notify existing service providers and the local authority of the Tenant's liability (if appropriate) for payment of the services and Council Tax during the Tenancy.
- 6.8.2 The local authority and utility companies should send the relevant forms to the new occupier(s) to be completed and signed and it remains the Tenant's responsibility to ensure that a new account is opened in their name. The Agent cannot be held liable if services are disconnected or are not transferred by the utility companies.
- 6.8.3 At the end of the Tenancy, the Agent will contact the service company and request transfer of responsibility for the service

accounts to the Owner. The Agent will pay bills received from money held on the Owner's behalf until the Property is re-let. The Agent cannot be held liable should the service companies cut off the services for any reason except the Agent's default.

6.9 Key Holding Service

- 6.9.1 The Agent requires a set of keys in order to be able to manage the Property effectively. These will be held locally in a secure key safe and made available to the Agent's approved suppliers or any other party authorised by the Owner.

6.10 Vacant Management

- 6.10.1 Subject to condition 7, during periods when the Property is vacant, if providing the Managing Service and if instructed by the Owner to manage the vacant Property, the Agent will continue to manage the Property but shall not be held liable for any loss and/or damage arising from any damage arising to the Property by fire, flood, burst or leaking pipe or tank, storm or inclement weather, forced or attempted entry, or theft. If the Owner requires supplies to be turned off or disconnected during this period, the Agent must receive instructions in writing and will arrange for the required contractor to attend at the Owner's expense. The Owner is also advised to contact his/her insurance company should the Property be empty for longer than 30 days as most residential insurance policies restrict or limit the scope of cover for unoccupied property.

6.11 Dealing with Third Parties

- 6.11.1 The Agent will liaise where necessary with the Owner's accountants, solicitors, superior landlords, managing agents and mortgagees.

7. LIABILITY

- 7.1 Nothing in these Conditions shall limit or exclude the Agent's liability for:
- 7.1.1 death or personal injury caused by its negligence, or the negligence of its employees, agents or subcontractors; or
 - 7.1.2 fraud or fraudulent misrepresentation; or
 - 7.1.3 any other liability which is not permitted by law to limit or exclude.
- 7.2 Subject to condition 7.1:
- 7.2.1 the Agent shall have no liability to the Owner, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, for any indirect losses incurred by the Owner and which are not foreseeable by the Agent and the Owner, such as loss of profits or loss of opportunity, arising under or in connection with the Agreement.
- 7.2.2 Subject also to condition 7.1, the total liability of the Agent for any other loss suffered by the Owner arising under or in connection with the Agreement, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, in respect of any one event or series of connected events shall not exceed the sum insured under the professional indemnity insurance policy held by the Agent in the insurance year in which the Owner's claim is first notified to the Agent.
- 7.2.3 The Agent does not accept liability for losses resulting from any errors or omissions within any inventory, check-in or check-out documents that are produced by a third party.
- 7.2.4 The Agent shall not be responsible for latent or hidden defects in the Property.
- 7.2.5 The Agent will use its reasonable endeavours to ensure the suitability of Tenants, timely rental payments by Tenants and vacant possession at the end of the Tenancy but shall not be held responsible for such matters.
- 7.3 Except as set out in these Conditions, all warranties,

conditions and other terms implied by statute or common law are, to the fullest extent permitted by law, excluded from the Agreement.

8. EVENTS OUTSIDE OUR CONTROL

- 8.1 The Agent shall not be liable or responsible for any failure to perform, or delay in performance of, any of its obligations under these Conditions that is caused by an Event Outside Our Control.
- 8.2 An Event Outside Our Control means any act or event beyond the Agent's reasonable control, including without limitation strikes, lock-outs or other industrial action by third parties, civil commotion, riot, invasion, terrorist attack or threat of terrorist attack, war (whether declared or not) or threat or preparation for war, fire, explosion, storm, flood, earthquake, subsidence, epidemic or other natural disaster, or failure of public or private telecommunications networks.
- 8.3 If an Event Outside Our Control takes place that affects the performance of the Agent's obligations under these Conditions:
- 8.3.1 The Agent will contact the Owner as soon as reasonably possible to notify the Owner; and
 - 8.3.2 The Agent's obligations under these Conditions will be suspended and the time for performance of the Agent's obligations will be extended for the duration of the Event Outside Our Control. Where the Event Outside Our Control affects the Agent's performance of Services to the Owner, the Agent will restart the Services as soon as reasonably possible after the Event Outside Our Control is over.

9. GENERAL

- 9.1 Remuneration
- The Agent may retain sufficient monies to meet its Fees out of all monies coming into its hands by virtue of the Agreement.
- 9.2 Commission and Interest - Any commission, interest or other income earned by the Agent while carrying out its duties, including without limitation any interest on deposits held or from referrals to solicitors, EPC providers, contractors or inventory clerks will be retained by the Agent.
- 9.3 Change of Address - Each of the parties shall give notice to the other of change or acquisition of any address or telephone, fax, email or similar numbers or addresses as soon as practicable, and in any event within 48 hours of any such change or acquisition.
- 9.3 Joint Owners - Where there are joint Owners signing the Agreement, each Owner shall be liable under the Agreement both individually and together for all the obligations of the Owner under the Agreement.
- 9.4 Binding agreement - The Agreement shall commit and benefit, the persons named on the Agreement and their respective personal representatives, successors and permitted assigns, and references to any party shall include that party's personal representatives, successors and permitted assigns.
- 9.5 Law - The Agreement and any dispute arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with English Law and the parties agree to submit to the non-exclusive jurisdiction of the English Courts in respect of such disputes. However, if the Owner is a resident of Northern Ireland, the Owner may also bring proceedings in Northern Ireland, and if the Owner is a resident of Scotland, the Owner may also bring proceedings in Scotland.

9.6 Changes to the Agreement - The Agent reserves the right from time to time to make changes to the Conditions contained in the Agreement (except in relation to the level of Fees due under the Agreement), provided that the service the Agent offers is not materially different. Notice of such changes will be provided in writing by the Agent giving 28 days' notice.

9.7 Keys

- 9.7.1 Where the Owner provides the Agent with a set of keys (or authorises the Agent to use keys held by another agent) the Agent may make further copies to facilitate viewings. The Agent will not charge for this service.
- 9.7.2 Where the Agent is not provided with sufficient sets to allow it to provide the Lettings or Lettings & Management Service and provide Tenants with one set of keys for each occupant of the Property, the Agent may cut additional sets and will require reimbursement of the cost incurred.
- 9.7.3 Subject to condition 7, the Agent uses a secure key tag system to ensure that third parties cannot identify which property a set of keys belongs to and the Agent's liability in the event that keys are lost or unaccounted for is strictly limited to the cost of cutting a new set of keys.

9.8 Insurance

- 9.8.1 Failure to inform the Owner's insurer that the Property is let could render the policy void. The Owner should obtain detailed advice from his/her insurers as to the nature and extent of the cover required.
- 9.8.2 Activities relating to the arrangement and administration of insurance are governed by the Financial Services and Markets Act 2000. The Agent is unable to arrange insurance on the Owner's behalf, to notify the insurer of claims or to complete documentation relating to arranging insurance or making claims.

9.9 Amendments/Variations

- 9.9.1 The Agreement constitutes the entire agreement between the Agent and the Owner and supersedes all prior agreements, understanding, representation or communications between the parties. If the Owner wishes to amend or vary the Agreement, he/she should ask for a director of the Agent to confirm the Agent's approval of the change in writing.

9.10 Interest

- 9.10.1 The Agent's Fees are payable on demand, as and when they fall due. The Agent reserves the right to charge interest on any amounts outstanding twenty eight days after the Fees are first demanded. Interest will be charged from the date the Fees became due at the annual rate of 3% above the base rate of the Bank of England from time to time.

9.11 Contractors

- 9.11.1 The Agent's has a panel of appointed contractors that is constantly monitored to ensure that all members offer high standards of quality, cost and reliability. The Agent will endeavour to use any contractor specified by the Owner, but cannot guarantee to do so, particularly in an emergency. Subject to condition 7, whilst exercising all due care and attention in the choice and administration of contractors, the Agent cannot accept any responsibility for any loss or damage caused by the neglect or default of any contractor.

9.12 Referrals

- 9.12.1 Any commission or other income earned by the Agent while carrying out its duties as agent for letting and/or management of the Property, for example, by referrals to solicitors, tenant fees, EPC providers, contractors or inventory clerks, will be

retained by the Agent.

- 9.12.2 Vetted contractors may pay a referral fee to the Agent. The fee paid will be stated within the contractor's invoice and could be up to 25% of the total invoice amount, depending on the service provided, the details of which are available on request. This will not affect the final amount payable by the Owner.

9.13 Landlord & Tenant Act 1987

- 9.13.1 The Agent is obliged to include the Owner's full name and address on all rent demands. If the Owner's address is outside England and Wales then the Agent must provide the Tenant with an address within England and Wales to which notices (including notices in Proceedings) may be served upon the Owner. The Agent will require this information before a Tenancy commences. If the information first provided changes during the Tenancy the Agent must be informed immediately.

9.14 Data Protection & Privacy

- 9.14.1 The Agent is registered under the Data Protection Act 1998 and undertakes to comply with the Act in all its dealings with the Owner's personal data. The Agent may be required by The Property Ombudsman or other regulatory bodies or agencies for the purpose of monitoring the Agent's compliance with the TPO Code of Practice or other regulatory requirements and by signing the instruction form, the Owner consents to disclosure of such information.
- 9.14.2 Occasionally the Agent may contact the Owner by letter, telephone, email or otherwise to inform the Owner about other products and services it offers. If the Owner does not wish to receive such communications, the Owner may write to the Managing Director, Elizabeth Wightwick Limited, 60 High Street, Wimbledon SW19 5EE email: info@elizabeth-wightwick.co.uk

- 9.15 Anti-Money Laundering - The Agent is subject to legislation requiring it to ask the Owner for suitable identification and will be unable to proceed with any work on the Owner's behalf if it is unable to obtain this from the Owner. The Owner's identity may be subject to an electronic identity check, which may leave a soft footprint on your credit report. Where appropriate proof of ownership of the Property and confirmation of the source or destination of funds may also be required.

- 9.16 Selling the property - In the event that an existing Tenant, that has been introduced by the Agent, agrees to purchase the property from the Landlord, then the Landlord agrees to pay to the Agent a sales introduction fee of 1.25% + VAT of the purchase price on date of completion.

10. COMPLAINTS PROCEDURE

Should the Owner have any problems with the Agent's service which he/she/it is unable to resolve with the negotiator involved he/she/it should write to the Managing Director, Elizabeth Wightwick Limited, 60 High Street, Wimbledon SW19 5EE email: info@elizabeth-wightwick.co.uk. Any complaint will be acknowledged within three working days of receipt and an investigation undertaken. A formal written outcome of the investigation will be sent to the Owner within 15 working days. This letter will confirm that the Owner is entitled, if dissatisfied, to refer the matter to The Property Ombudsman for a review within 12 months of the date of the Agent's final view. The Ombudsman will only review complaints made by consumers.

- 10.1 We are committed to providing a professional service to all our clients and customers. When something goes wrong, we need you to tell us about it. This will help us to improve our standards.



As members of the Property Ombudsman, we abide by the Property Ombudsman code of practice. Should you or your Tenant have a registered complaint, you also agree that we may disclose your details to the Property Ombudsman should they require them in their monitoring of our compliance with the Property Ombudsman Code of Practice. Registered in England and Wales. Registration no. 10660465.

If you have a complaint, please put it in writing, including as much detail as possible. We will then respond in line with the timeframes set out below (if you feel we have not sought to address your complaints within eight weeks, you may be able to refer your complaint to the Property Ombudsman to consider without our final viewpoint on the matter).

What will happen next?

- We will send you a letter acknowledging receipt of your complaint within three working days of receiving it, enclosing a copy of this procedure.
- We will then investigate your complaint. This will normally be dealt with by the office manager who will review your file and speak to the member of staff who dealt with you. A formal written outcome of our investigation will be sent to you within 15 working days of sending the acknowledgement letter.
- If, at this stage, you are still not satisfied, you should contact us again and we will arrange for a separate review to take place by a senior member of staff.
- We will write to you within 15 working days of receiving your request for a review, confirming our final viewpoint on the matter.

If you remain dissatisfied, you can then contact The Property Ombudsman to request an independent review: **The Property Ombudsman Ltd, Milford House, 43-45 Milford Street, Salisbury, Wiltshire, SP1 2BP - 01722 333 306, www.tpos.co.uk**

Please note the following; You will need to submit your complaint to The Property Ombudsman within 12 months of receiving our final viewpoint letter, including any evidence to support your case. The Property Ombudsman requires that all complaints are addressed through this in-house complaints procedure, before being submitted for an independent review.

11. TERMINATION

11.1 This Agreement shall terminate:

- 11.1.1 Upon expiry of a Tenancy or Tenancies (including any renewal, extension, hold-over or new agreement with the Tenant) arranged by the Agent from time to time without renewal, extension, hold-over or new agreement with the Tenant Introduced to the Property by the Agent under the Agreement.
- 11.1.2 Forthwith by the Agent in the event that the Agent reasonably believes that the Owner is in breach of any statutory regulation relating to the Property.
- 11.1.3 With immediate effect if the Owner does not pay the Agent when he/she/it is supposed to as set out in condition 3; or
- 11.1.4 With immediate effect if the Owner breaks the Agreement in any other material way and the Owner does not correct or remedy the situation within 14 days of the Agent asking the Owner to do so in writing.
- 11.1.5 Upon completion of the sale of the Property by the Owner.
- 11.2 For the avoidance of doubt, upon termination of a Tenancy or Tenancies (including any renewal, extension, hold-over or new agreement) arranged by the Agent before its agreed expiry or termination or break clause of the Agreement for any reason other than the default of the Agent, the Agent shall be under no obligation to repay Fees for the Lettings Service received by the Agent in whole or in part, except if termination was caused by the Agent's default, and any Fees due and remaining to be paid become immediately due and payable.
- 11.3 The Lettings & Management Service can be terminated after the minimum period as set out in condition 2.3 by either party giving one month's written notice to the other, on the expiry of which the service will convert to the Lettings Service and the

Fees will revert to those payable for the Lettings Service or those payable for any renewal(s), extension(s) or hold-over(s) of the Tenancy or new agreement with the Tenant, as appropriate.

12. EFFECT OF TERMINATION

The termination of the Agreement for any reason does not affect any obligation or rights of the parties which have accrued prior to such termination. Terms which expressly or by implication have effect after termination shall continue in full force and effect.

13. CONSUMER RIGHT TO CANCEL

NOTICE OF RIGHT TO CANCEL DISTANCE AND OFF-PREMISES CONTRACTS – APPLIES TO A “CONSUMER” ONLY:

- 13.1 Where you are a consumer (that is you are not entering into this in the course of carrying on a business), then you have the following rights of cancellation in relation to contracts defined as “off-premises contracts” or “distance contracts” in the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013

Off-premises contracts:

A contract between you and Elizabeth Wightwick Limited will be off-premises if one of the following is true:

it is concluded in the simultaneous physical presence of you and our representative in a place which is not our business premises; or an offer was made by you in the simultaneous physical presence of you and our representative, in a place which is not our business premises; or it is concluded on our business premises or through any means of distance communication immediately after you have personally and individually been addressed in a place which is not our business premises.

You have a right to cancel this contract without giving any reason or incurring any liability during the cancellation period.

Distance contracts:

If you accept these Terms and Conditions of Business by the exclusive use of one or more means of distance communication up to and including the time at which the contract is concluded You have the right to cancel the contract without giving any reason or incurring any liability during the cancellation period.

- 13.2 These rights can be exercised by delivering or sending (including by electronic mail) a cancellation notice to Elizabeth Wightwick Limited at any time within the period of 14 days starting from the day after the contract is entered into. You should write to the Managing Director; Elizabeth Wightwick Limited 60 High Street, Wimbledon SW19 5EE email: info@elizabeth-wightwick.co.uk. Notice of Cancellation is deemed to be served as soon as it is posted or sent to Elizabeth Wightwick Limited or in the case of electronic communication, from the day it is sent to us.

- 13.3 We recommend giving notice in writing and keeping a copy. A form of cancellation notice is provided below, but it is not obligatory use this form.

- 13.4 A Tenancy Agreement entered into between you and a tenant is separate from this contract made between you and us. The cancellation of this contract will not terminate any Tenancy Agreement that you have or do enter into with a tenant.

Owner's declaration



ELIZABETH WIGHTWICK
YOUR BESPOKE PROPERTY AGENT

I/We declare that I am/we are the sole/joint owner(s) of the freehold/ leasehold Property as stated above and that prior to the commencement of the Tenancy all furniture and upholstered furniture, soft furnishing, beds, mattresses, pillows and cushions (if any) supplied to the Property, comply (if appropriate) with the provision of the Furniture and Furnishing (Fire) (Safety) (Amendment) Regulations 1993, and warrant that the Property complies with the Gas Safety (Installation and Use) Regulations 1998 and the Electrical Equipment (Safety) Regulations 1994 and that I/we and the contents and the Property comply with all applicable laws. I/We agree that work may commence before the cancellation period expires and I/we sign below to confirm this agreement and I/We understand that if I/We cancel within 14 days under condition 13, I/we shall pay the Agent any amounts that have become properly due to the Agent under the Agreement in relation to services already provided on my/our behalf prior to my /our cancellation, including a standard abortive tenancy fee in condition 3.8. I have read and understood the terms and conditions as set out above and overleaf, I accept that in signing this document I will be bound by its entire contents.

TO BE SIGNED BY ALL OWNERS

Full name

Date signed

Signature

Full name

Date signed

Signature